

HOUSE BILL 854

By Lamberth

AN ACT to amend Tennessee Code Annotated, Title 24;  
Title 39 and Title 40, relative to criminal procedure.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF TENNESSEE:

SECTION 1. Tennessee Code Annotated, Section 40-11-115(b), is amended by adding the following as a new subdivision:

( ) Reliable hearsay evidence, including, but not limited to, computer printouts of state and federal criminal records maintained by the Tennessee bureau of investigation and the federal bureau of investigation, if the defendant is accorded a fair opportunity to rebut any reliable hearsay evidence considered by the magistrate.

SECTION 2. Tennessee Code Annotated, Section 40-11-118(b), is amended by redesignating the current language as subdivision (b)(1) and adding the following new subdivision (b)(2):

(2) In determining the amount of bail necessary to reasonably assure the appearance of the defendant while at the same time protecting the safety of the public, the magistrate may consider reliable hearsay evidence, including, but not limited to, computer printouts of state and federal criminal records maintained by the Tennessee bureau of investigation and the federal bureau of investigation, if the defendant is accorded a fair opportunity to rebut any reliable hearsay evidence considered by the magistrate.

SECTION 3. This act takes effect upon becoming a law, the public welfare requiring it.